

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS

NICOLE POTTER HEIR AT LAW OF	)	
BEVERLY RETZLAFF, DECEASED,	)	
HOLLY BOESE HEIR AT LAW OF	)	
BEVERLY RETZLAFF, DECEASED,	)	
NICOLE POTTER,	)	
ADMINISTRATOR OF ESTATE;	)	
THE ESTATE OF	)	
BEVERLY RETZLAFF, DECEDENT	)	
	)	
Plaintiffs,	)	
vs.	)	Case No.
	)	
DENISE WAGNER AND	)	
WAGNER'S CARNIVAL, LLC	)	
	)	
Defendants.	)	
	)	

COMPLAINT

Plaintiffs, by and through counsel, Dustin L. DeVaughn and Joshua D. Wright of DeVaughn James Injury Lawyers, and for their claims against the Defendants, alleges and states:

1. Plaintiffs Nicole Potter and Holly Boese are the daughters of the Decedent, Beverly Retzlaff. Plaintiffs are citizens of the United States and residents of the State of Kansas. The Estate of Beverly Retzlaff is a duly filed Estate opened on January 9, 2018 in Barton County, Kansas District Court.
2. Nicole Potter was appointed administrator of the Estate.
3. Defendant Denise Wagner resides at 1240 N. McCampbell Street, Aransas Pass, Texas, 78336 and may be served at that address.
4. Defendant Wagner's Carnival, LLC is a business domiciled in the State of

Texas, and may be served through its registered agent, Jason G. Wagner at its registered address, 1240 N. McCampbell Street, Aransas Pass, Texas, 78336.

5. This Court has jurisdiction over the persons and subject matter.
6. Venue is proper in the division of the Kansas District Court of the Federal District Court.
7. This action is brought pursuant to 28 U.S.C. Section 1332(a) on the basis of diversity of citizenship. The matter is in excess of the sum of Seventy-Five Thousand Dollars (\$75,000.00) exclusive of interest and costs.
8. On or about August 20, 2017, at approximately 2:08 p.m., Decedent Beverly Retzlaff was traveling northbound on U.S. Route 281 in Barton County, Kansas.
9. Meanwhile, Defendant Denise Wagner was traveling southbound on U.S. Route 281 in Barton County, Kansas. Defendant Wagner was pulling a camper trailer behind her vehicle. Based upon reasonable belief and due diligence, it is believed the trailer is owned and or maintained by Wagner's Carnival, LLC.
10. As the vehicles were about to pass traveling in opposite directions at milepost 109, a wheel dislodged from the defendants' camper trailer.
11. Defendant Denise Wager was driving in the course and scope of her employment or agency with Defendant Wagner's Carnival, LLC which owns and / or maintains the trailer.
12. The wheel that came off defendants' trailer struck Plaintiff's vehicle crushing

the driver side of the vehicle and struck Beverly Retzlaff in the chest and head.

13. Defendants Denise Wagner and Wagner's Carnival, LLC were negligent for the following reasons:
 - a. Negligently operating a truck and trailer;
 - b. Failure to maintain equipment on the trailer;
 - c. Failure to inspect the equipment on the trailer;
 - d. Failure to maintain a proper lookout; and
 - e. Failure to drive with reasonable care;
14. The negligence of Defendants Denise Wagner and Wagner's Carnival, LLC was the proximate cause of the traumatic injuries sustained by Beverly Retzlaff, deceased.
15. As a result of the negligence of the Defendants Denise Wagner and Wagner's Carnival, LLC, Beverly Retzlaff experienced conscious pain and suffering and eventually death. The Estate of Beverly Retzlaff sustained financial harm including loss of income, pecuniary harm, net pecuniary loss, and other recoverable damages of a personal and pecuniary nature. The Estate also brings and maintains a survival action on behalf of the Decedent's Estate encompassing funeral and burial expenses.
16. As a result of Defendants' negligence, the heirs of Beverly Retzlaff and the Estate has suffered and will continue to suffer, the loss of the Decedent's society, comfort, companionship, and all other losses of a personal and pecuniary nature.

WHEREFORE, Plaintiffs request judgment against Defendants in an amount in excess of Seventy-Five Thousand Dollars (\$75,000.00), for costs herein, and for such other and further relief as the Court deems just and equitable.

Respectfully submitted,

/s/ Joshua D. Wright

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Attorney for Plaintiffs

DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

COMES NOW the Plaintiff and demands a pretrial conference and trial by a jury in this matter.

/s/ Joshua D. Wright

Joshua D. Wright, #24118

Dustin L. DeVaughn, #16559

Attorneys for Plaintiff

DESIGNATION FOR PLACE OF TRIAL

COME NOW the Plaintiffs and designates Wichita, Kansas as the place for trial of this matter.

/s/ Joshua D. Wright

Joshua D. Wright, #24118

Dustin L. DeVaughn, #16559

Attorneys for Plaintiff